

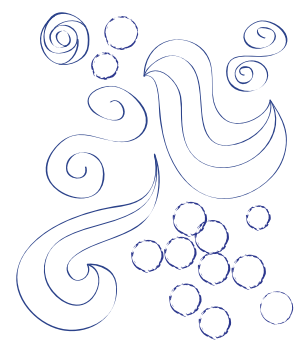
Recognising **Aboriginal**
and **Torres Strait Islander**
people in the **Constitution**



SCHOOL LEARNING GUIDE - YEARS 10, 11 AND 12



Recognising Aboriginal and Torres Strait Islander people in the Constitution



As Australians, we all want to be recognised and treated as equals. The Constitution, the highest legal document in Australia, does not recognise Aboriginal and Torres Strait Islander people as Australia's First People and continues to have sections that permit discrimination on the basis of race.

This School Learning Guide (the guide) discusses the history of challenges and opportunities for achieving recognition of Aboriginal and Torres Strait Islander people, generally and in the Australian Constitution.

Connection to Australian Curriculum

The guide is designed to assist teachers and students to understand the efforts of Aboriginal and Torres Strait Islander people and government in the struggle for rights and freedoms in Australia, and to encourage critical and creative thought on justice, right and wrong, freedom, truth, identity and empathy.

The guide can be used in the study of:

- ✓ Year 10 Depth Study 'Rights and Freedoms'
- ✓ Year 10 General Capabilities 'Ethical Behaviour'
- ✓ Year 10 General Capabilities 'Intercultural Understanding'
- ✓ Year 10 Politics and Law studies
- ✓ Years 11 and 12 Aboriginal studies, Politics and Law



Learning outcomes and objectives:

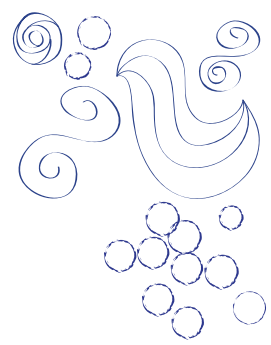
- Understanding of the Australian Constitution and how it has changed over time (Topic 1)
- Understanding of the process of constitutional change and the importance of voting (Topic 2)
- Understanding of the historical impact of the Constitution on Aboriginal and Torres Strait Islander people (Topic 3)
- Understanding of the historical context of constitutional change for Aboriginal and Torres Strait Islander people (Topic 4)
- Knowledge of the current agenda for constitutional recognition of Aboriginal and Torres Strait Islander people (Topic 5)





Learning outcome and objective:

Understanding the Australian Constitution and how it has changed over time.



Question:

Do you think the changes made to the Constitution have had positive impacts for Australian society today?

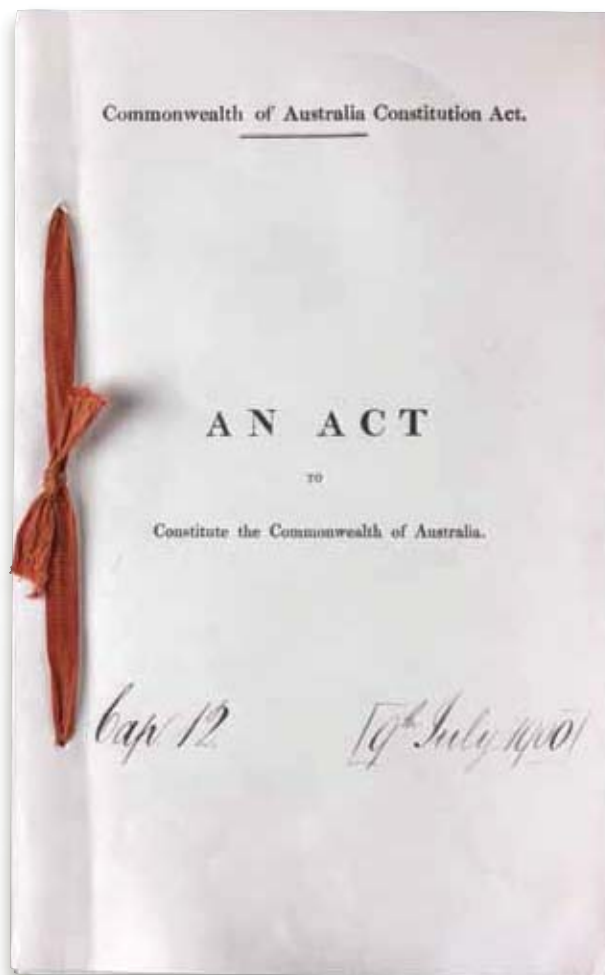
The Australian Constitution is the founding political and legal document of our nation. It is the document that established Australia as a federation and provided guidelines for how Australia would come to operate as a nation.

The Constitution sets out the rules of Parliament, providing the authority for the powers by which our legislators make laws, our executive government implements them, and our courts operate.

The Constitution was approved in referendums held over 1898–1900 by the people of the Australian colonies and came into force on 1 January 1901. Since then it has only been changed eight times, out of 44 attempts.

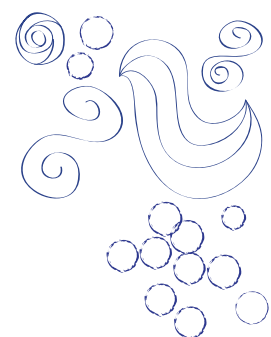
1.

The
Australian
Constitution
- an overview
and history
of change



Source: Commonwealth of Australia Constitution Act 1900: Original Public Record Copy, Courtesy of Parliament House Art Collection, Canberra ACT





Learning outcome and objective:
Understanding the Australian Constitution and how it has changed over time.

Successful changes to date:

1906

Enabled elections for the Senate and House of Representatives to be held at the same time.

1910

Gave the Commonwealth Government the power to take over state debts.

1928

Subjected states to a loan council before being able to borrow money.

1946

Enabled the Commonwealth to legislate on a wide range of social services.

1967

Enabled the Commonwealth to enact laws for Aboriginal people and removed the prohibition against counting them in the population counts of the Commonwealth or a State.

1977

Ensured a casual vacancy in the senate is filled by a person of the same political party, who can hold the seat until the end of term.

1977

Allowed electors in Territories, as well as in the States, to vote in constitutional referendums.

1977

Provided a retiring age for judges of Federal courts.

For a full listing of Australian Referenda, please go here: http://www.aec.gov.au/Elections/referendums/Referendum_Dates_and_Results.htm



Learning outcome and objective: Understanding of the process of constitutional change and the importance of voting.

Question:

Research one successful and one unsuccessful Australian referendum and outline three key factors affecting each outcome.

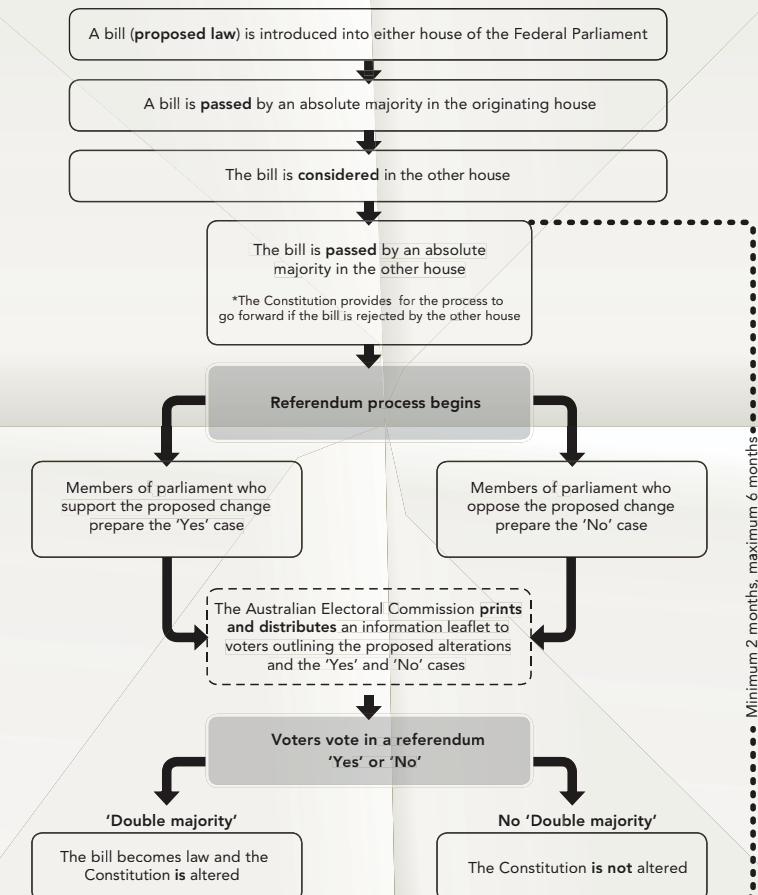
Changing the Australian Constitution is difficult, and for good reason. Changes can have a far-reaching impact because the Constitution underpins our federal laws and institutions.

The power to amend our Constitution lies with the people through a referendum. To hold a referendum, the Australian Parliament needs to follow the process laid out in section 128 [<http://foundingdocs.gov.au/item-sdid-82.html>] of the Constitution. A guiding feature of constitutional change in Australia is that any proposed amendment must be approved by a double majority, that is:

- A majority of voters nationwide, and
- A majority of voters in a majority of States (four out of six States).

2. Changing the Constitution

The referendum process:

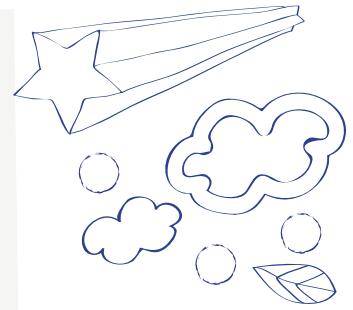


Author: Australian Electoral Commission, 'Democracy Rules – Teacher's Toolbox, 2011'



Learning outcome and objective:

Understanding of the historical impact of the Constitution on Aboriginal and Torres Strait Islander people



Question:

What were the factors that contributed to the successful 1967 Referendum?

On May 27 1967, Australians voted overwhelmingly to change the Australian Constitution. Provisions which prevented the Federal Government from making laws for Aboriginal people, and excluded them from being counted in the census, were removed from the Constitution.

The 'Yes' vote of 90.77% remains a record in the history of Australian referendums.

The 1967 Referendum is extremely significant to Aboriginal and Torres Strait Islander people. For many people, it represented a turning point from official discrimination to the promise of full and equal citizenship.

The overwhelming 'Yes' vote also signalled that non-Indigenous Australians were ready to embrace social and political reform, and expected the Federal Government to take the lead. In 1975 the Racial Discrimination Act (Cth) was enacted into Australian law which outlawed discrimination based on race, colour, descent or national or ethnic origin.

For more information, please go here.

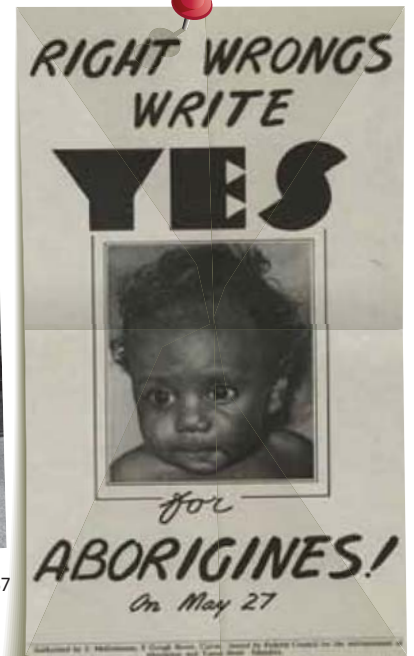
<http://www.naa.gov.au/collection/fact-sheets/fs150.aspx>

3.

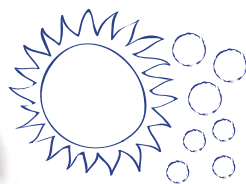
A success story
- The 1967 Referendum



Harold Holt with Faith Bandler and other Aboriginal Delegates, 1967
Source: National Archives of Australia

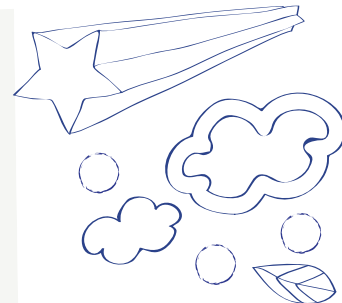


Source: FCAATSI, Papers of Gordon Bryant (MS 8256)



Learning outcome and objective:

Understanding of the historical impact of the Constitution on Aboriginal and Torres Strait Islander people



Source: Newspix/News Ltd

3.

A success
story
- The 1967
Referendum

Faith Bandler - leading Australians to 'Yes'

Source: National Museum of Australia

Faith Bandler is well known for her active role in publicising the YES case for the Aboriginal question in the 1967 Referendum.

She was born in northern New South Wales in 1919, one of eight children. Her father, Peter Mussing, had been kidnapped from Ambryn, an island in what was known as the New Hebrides, and brought to Australia, enslaved, to work on sugar plantations. Awareness of her father's past experience exerted a strong influence on Bandler in her later political activism, as did her own experience of racial exclusion when she was growing up.

Faith met Lady Jessie Street through her involvement in the peace movement in the late 1940s. Jessie Street would later call on Faith to campaign for greater Commonwealth responsibility for Aboriginal Australians. Another key meeting with Aboriginal activist Pearl Gibbs in the early 1950s led to Faith Bandler's involvement in establishing, with Pearl and others, a new organisation to work for Aboriginal rights, the Sydney-based Aboriginal-Australian Fellowship.

The Aboriginal-Australian Fellowship began in 1956 and was Bandler's political base for the next 13 years. She worked closely with Jack and Jean Horner, Emil and Hannah Witton, Ken Brindle, John Baker and Dulcie Flower both in the Fellowship and when Sydney became the executive headquarters of the Federal Council for the Advancement of Aborigines and Torres Strait Islanders (FCAATSI) in 1967.

In 1963, Faith Bandler became the New South Wales state secretary of the Federal Council for Aboriginal Advancement representing the interests of Aboriginal people from New South Wales. In 1967, after the Federal Government had agreed to hold a referendum on the Aboriginal question, Bandler was appointed New South Wales campaign director, a position she fulfilled with energy, skill and enthusiasm. She argued that a YES vote was a vote for equal rights for Aboriginal citizens. Bandler wanted to see Aboriginal Australians accepted as equals, and as 'one people' with white Australians.

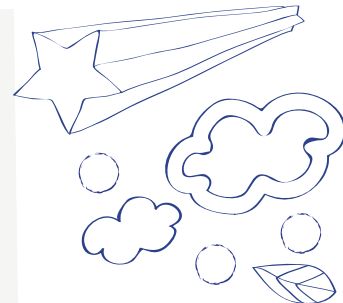
Source: <http://indigenoustrights.net.au/person.asp?plD=954>





Learning outcome and objective:

Understanding of the historical impact of the Constitution on Aboriginal and Torres Strait Islander people



Question:

How do you think the involvement of Faith and other people in the campaign helped to achieve change?

3.

A success story
- The 1967
Referendum

A short take on the Referendum build up:

Faith Bandler – Quoted from ABC Broadcast, 2004

"So we got the petition going and I started to take this petition around - calling on the government to... well, hold a referendum to give the Indigenous people equal rights. And I peddled this petition from '57 until '67 with my little group.

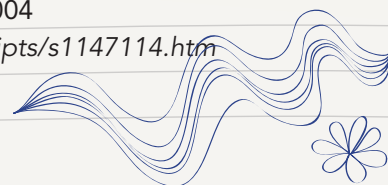
We only had a little handful. There would have been no more than 9 or 10. Every day for 10 years, except for the weekends, I took that petition around. I spoke, I suppose, to every VIEW club that was in existence, to every Rotary Club I could think of, Lions, churches, schools,... Oh, you know, it just went on.

It was pointless getting signatures to a petition. The petition, of course, had to be presented in the House. So, um, every day... when the Speaker called for petitions, we'd have someone there to hop up with ours, and this went on for 10 years. We only had to get 100,000 signatures but we got 10 times that over. And we kept getting the federal members to present our petition, to present it, to keep it going.

The most important visit to Parliament House was a visit with our executive. They came from each State to meet Prime Minister Menzies and I am sure it was that visit that turned the tide, and I'm sure we convinced the Prime Minister that a referendum should be held."

Source: ABC Broadcast 6.30pm - 5 July 2004

<http://www.abc.net.au/gnt/history/Transcripts/s1147114.htm>



Learning outcome and objective:

Understanding of the historical context of constitutional change for Aboriginal and Torres Strait Islander people



Question:

Discuss the concept of positive recognition that is mentioned in Noel Pearson's quote. Does positive recognition help to right past wrongs?

"The original Constitution of 1901 established a negative citizenship of the country's original peoples. The reforms undertaken in 1967, which resulted in the counting of Indigenous Australians in the national census and the extension of the races power to Indigenous Australians, can be viewed as providing a neutral citizenship for the original Australians. What is still needed is a positive recognition of our status as the country's Indigenous peoples, and yet sharing a common citizenship with all other Australians."

Noel Pearson

4.

Why is
recognition
important?

Recognition is an important element of reconciliation between Aboriginal and Torres Strait Islander people and other Australians.

Our Constitution was drafted and adopted over a century ago by a narrow cross-section of Australian society, whose thinking reflected the dominant historical, economic, social and political aspirations of the day. As a part of this:

- Aboriginal and Torres Strait Islander people were not asked to help write the Constitution.
- The Constitution does not recognise Aboriginal and Torres Strait Islander people as the first Australian people and it does not recognise their existence in Australian society today.
- The Constitution does not acknowledge Aboriginal and Torres Strait Islander histories or laws.

Since 1901, Australia has seen some key legislative and symbolic changes that have sought to recognise the rights and unique place of Aboriginal and Torres Strait Islander people in Australian society.

However, the possibility of discrimination on the basis of race in Australian laws continues to exist under the Constitution. Many constitutional law experts believe that two sections of our existing Constitution—section 51(xxvi) and section 25—would need to be amended to eliminate this possibility of discrimination. To read more, go to Chapter 5 of the Expert Panel's report: recognise.org.au/expert-panel-report



Learning outcome and objective:

Understanding of the historical context of constitutional change for Aboriginal and Torres Strait Islander people



Question:

Is recognition of Aboriginal and Torres Strait Islander people in the Constitution important?

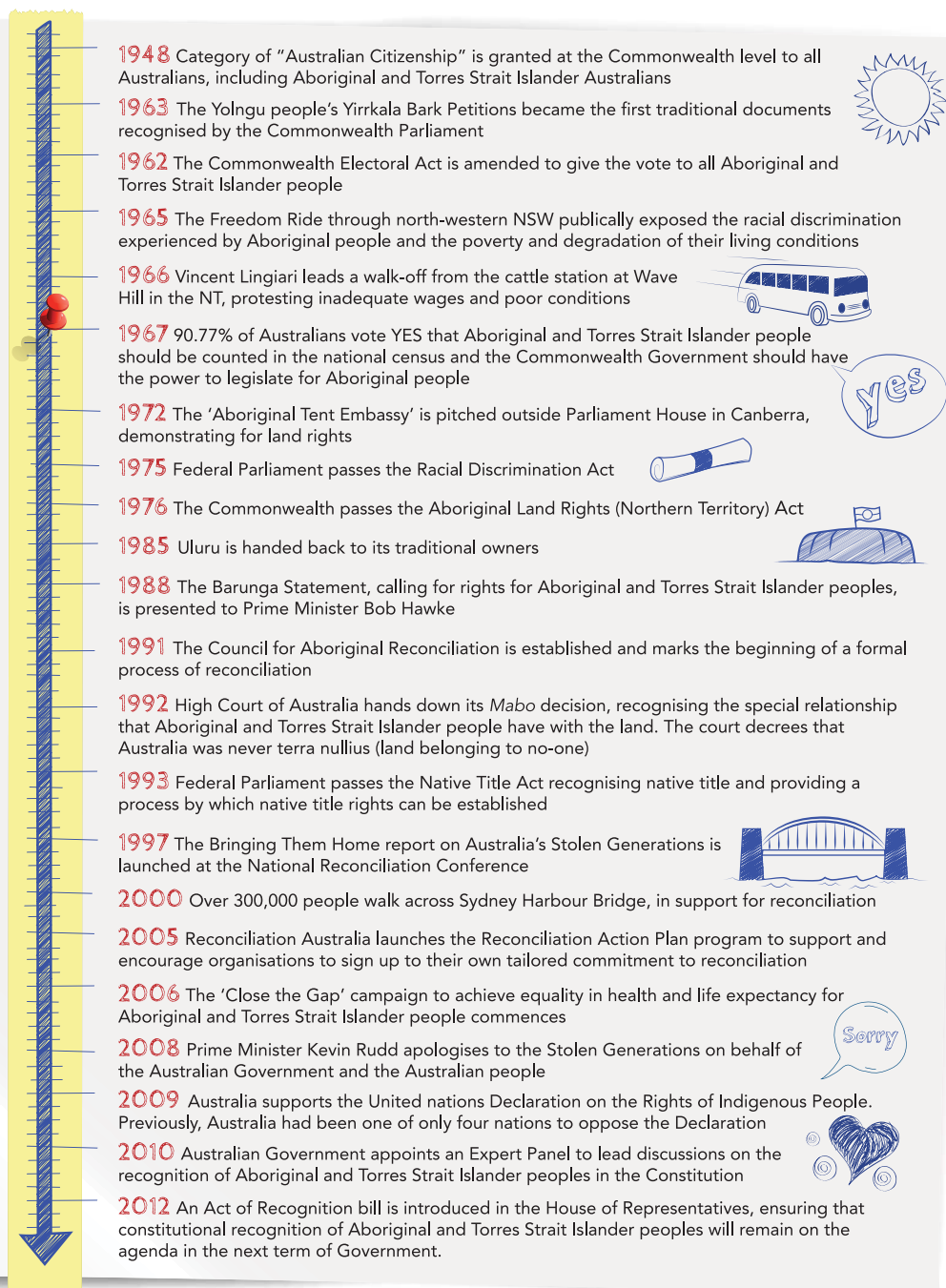
(use your timeline to help you think about recognition throughout Australia's history)

4.

Why is recognition important?

A snapshot of Recognition and Reconciliation

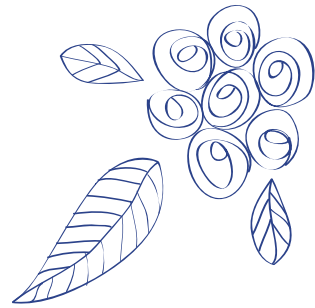
This timeline provides a snapshot of recognition and reconciliation for Aboriginal and Torres Strait Islander people over time, demonstrating some key achievements. Please note, this is not a complete list and students are encouraged to explore other dates of significance for Aboriginal and Torres Strait Islander people.





Learning outcome and objective:

Knowledge of the current agenda for constitutional recognition of Aboriginal and Torres Strait Islander people



Question:

Discuss the factors that may affect the success of each of the Expert Panel's recommendations.

In December 2010 the Prime Minister appointed an Expert Panel to engage the Australian public on how the Constitution could be amended to recognise Aboriginal and Torres Strait Islander people.

Throughout 2011, the Panel engaged with thousands of Australians through submissions, consultations and meetings, to hear the views of a wide cross-section of the Australian community.

In January 2012, the Panel handed its report *Recognising Aboriginal and Torres Strait Islander Peoples in the Constitution*, (recognise.org.au/expert-panel-report) to the Prime Minister, recommending the following changes to the Constitution:

- Removal of section 25
- Removal of section 51(xxvi)
- Insertion of a new section 51A to recognise Aboriginal and Torres Strait Islander people and to preserve the Australian Government's ability to pass laws for the benefit of Aboriginal and Torres Strait Islander people
- Insertion of a new section 116A, prohibiting racial discrimination
- Insertion of a new section 127A, recognising Aboriginal and Torres Strait Islander languages while confirming that English is Australia's national language.

5.

Equal
treatment
in the
Constitution

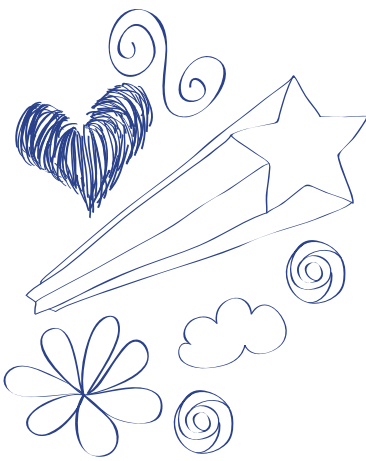
In February 2012, the Government asked Reconciliation Australia to run the education and awareness program surrounding constitutional recognition.

In November 2012, an Act of Recognition bill was introduced in the House of Representatives. The Act ensures that constitutional recognition of Aboriginal and Torres Strait Islander peoples will remain on the agenda in the next term of Government.





Let's put your knowledge to the test



Research assignment

Explore three occasions in Australian history where Aboriginal and Torres Strait Islander people achieved positive 'recognition'. Discuss the key challenges and opportunities that Aboriginal and Torres Strait Islander people faced on each occasion.



Essay question

At times, the idea of 'race' has been considered out-dated and irrelevant. Explore how the word 'race' could be replaced in Australia's Constitution, with reference to the Expert Panel's recommendations.

6.

Activities
for
students

Creative assignment

Recognition can make you feel valued, respected and that you belong. Create a presentation or story of 'recognition' using media (e.g. video/photography) accompanied by a narrative, explaining what it means to you to be 'recognised.'

Classroom debate

Constitutional recognition will help to create an equal Australia.





Tools and Resources

Online

- The Australian Constitution <http://foundingdocs.gov.au/item-sdid-82.html>
- RECOGNISE: www.recognise.org.au
 - Recognising Aboriginal and Torres Strait Islander People in the Constitution: Report of the Expert Panel
 - Discussion paper: A national conversation about Aboriginal and Torres Strait Islander constitutional recognition
 - Fact sheets
 - Blogs, interviews and filmed consultations
 - Photos and videos
- Facebook.com/RecogniseAU
- Twitter/ @RecogniseAU
- www.reconciliation.org.au – Reconciliation Australia
- www.humanrights.gov.au – Australian Human Rights Commission
- www.nationalcongress.com.au – National Congress of Australia's First People's

Books

- George Williams and David Hume, People Power: The History and Future of the Referendum in Australia, Sydney: UNSW Press, 2010.
- Bain Attwood and Andrew Markus, The 1967 Referendum: Race, Power and the Australian Constitution, 2nd edition, Canberra: Aboriginal Studies Press, 2007.
- Richard Broome, Aboriginal Australians: A history since 1788, 4th edition, Melbourne: Allen & Unwin, 2010.

DVD

- The First Australians: The Untold Story of Australia, Episode 6, A Fair Go For A Dark Race, SBS TV, 2008.
- This Day Tonight: The 1967 Referendum, ABC 1967.
- Fair Go, A: 1967 Referendum, ABC 1999

Music

- From Little Things Big Things Grow, Paul Kelly and Kev Carmody
- Blackfella Whitefella, Warumpi Band

RECOGNISE
acknowledges and
thanks teachers and
students involved in
the development of
this guide.

RECOGNISE welcomes feedback and questions in relation to this resource. Please email your thoughts to info@recognise.org.au

